

PAYMENT AND CANCELLATION POLICY

(Payment and Refund Rules)

Our policy is to provide all guests with an atmosphere of trust, comfort and fair treatment. We adhere to legal regulations, ethical standards and internationally accepted standards for service provision and payment practices. We welcome suggestions from tourists on how we can improve the quality of our services..

1. LEGAL BASIS

- 1.1. Payment and Cancellation Policy is equivalent to the Payment and Refund Rules.
- 1.2. The Payment and Refund Rules (hereinafter referred to as the Rules) are based on the concluded (accepted) Offer Agreement between Bunyod-Tour LLC (hereinafter referred to as the Tour Operator) and the Client (hereinafter referred to as the Client) regarding a booked (paid) tour/services (hereinafter referred to as the Parties). The Agreement for ordering (booking) or implementing tours/services is concluded both offline (manually) and online (electronically) on the Tour Operator's website - <https://bunyodtour.tj/> (hereinafter referred to as the Website).
- 1.3. The legal aspects of concluding (signing) an agreement in electronic format are based on the Law of the Republic of Tajikistan "On Electronic Documents and Electronic Signatures" dated March 15, 2023, No. 1965 and other legislative acts of the Republic of Tajikistan. For consideration of the legal aspects of the Agreement, the text in Tajik is used, but texts in other languages are also considered equivalent..

2. BASIC DEFINITIONS

The definitions and legal meanings presented below are an integral part of this Agreement and are subject to mandatory implementation by the Parties:

- **Contractor (Tour Operator)** – Limited Liability Company "Bunyod-Tour", which posted the Offer-agreement on the website - <http://bunyodtour.tj>;
- **Customer (Client/Tourist)** — a user, an individual or legal entity who has accepted the offer and is thus the Customer of the Contractor's (Tour Operator's) services under the concluded Offer-agreement, ordering a Tourist Product, both on their own behalf and on behalf of another tourist (tourists), including the legal representative of a minor tourist;
- **Offer-agreement** — a regulatory and legal document, published in the public domain on the website - <http://bunyodtour.tj>, which is concluded through the acceptance of the offer between the Contractor ("Bunyod-Tour"/Tour Operator) and the Customer (tourists, travel agents, etc.) for the provision of tourism services;
- **Offer's Acceptance** — is the full and unconditional acceptance of the terms of the offer by the Client expressing the intention to use the website - <http://bunyodtour.tj> of the Tour Operator (Contractor) to arrange services through registration actions on the Contractor's website and the procedure for paying for tourist services;
- **Website** - open for free visual review, information and use (work) publicly accessible at the address - <http://bunyodtour.tj>, through which information is displayed on the types

- of services and tours provided by the Contractor (Tour Operator);;
- **Tour Product (tour)** – a set of transportation and accommodation services provided for a total price (regardless of the inclusion in the total price of the cost of excursion services and (or) other services) under this Agreement. Also, the specified term in the Agreement may be understood as a separate tourist service and/or services, which, depending on the specific conditions of the application, may include: accommodation in hotels and other accommodation places; transportation documents (air tickets, train tickets, etc.); meals in hotels and other places of accommodation; transfer to (place of) temporary stay; excursion services; attending cultural, entertainment or sporting events; transport rental; services of instructors in various sports; services of a guide and/or assistant; insurance and other services;
 - **Booked Tour Product** – is a signed or accepted Offer-agreement, which is presented when applying and paying (or making an advance payment) for a tour/service, and all conditions (specified in the Offer-agreement and on the website) are considered accepted and acknowledged by the Client (tourist) as an obligation;
 - **Application (order) for a Tour Product** – a duly completed order from the Client (tourist) for the acquisition (purchase) of a tour product selected on the Tour Operator's website or by other competent means;
 - **Voucher (ticket)** – a document (paper and/or electronic) confirming the Client's (Tourist's) order for the acquisition (purchase) of a Tour Product and which contains the necessary information about the Client (Tourist);
 - Full payment - is when the Client pays the full cost of the Tour Product (100%), including the deposit;
 - **Deposit** – an advance payment of 25% (10% when signing up for a shared group tour) of the cost of the Tour Product, which serves as a guarantee for the purchase of the tour/service and is non-refundable. In the case of full payment for the tour, 25% (10%) is considered a deposit and is non-refundable;
 - **Cancellation** - is the Client's refusal of a booked (paid) Tourist Product via the website or other means and receipt of the corresponding confirmation;
 - **Free cancellation** – cancellation of the booked tour and a full refund is possible 30 days before the start of the tour (local time, UTC +5). However, this bonus option does not apply to those who booked the tour during this period (within 30 days before the tour start date);
 - **Payment and Cancellation Policy (Payment and Refund Rules)** – a document published on the website: <http://bunyodtour.tj>, presenting the methods of payment for tourist products and the conditions for refunds in the event of a Tourist (Customer) cancelling a booked (paid) tour;
 - **Early booking** – booking a tour 12 months before the start of the tour;
 - **Private tour** - a standard type of tour, individual, services are provided personally. The tour package can be booked by one or more persons; payment is charged per person;
 - **Group tour, private** - a comfortable type of tour, group, individual; services are provided personally. The group may consist of one or several tourists in a specified (limited) number; payment is charged per group;
 - **Group tour, shared** - an economy (budget) type of tour, a general group tour. Anyone can sign up for the group, services are provided equally to everyone, the number of tourists is limited (indicated on the tour card); payment is charged per person;
 - **Special Notes** – legal and behavioral norms contained in the contractual basis of our services and tours, which are provided to tourists as information (awareness) and recommendations when booking our tours/services, their use, as well as during their stay in Tajikistan and other countries of Central Asia, published on the website

<http://bunyodtour.tj>;

- **Changes to the Tour Product** - any changes to the Tour Product or other conditions of the Booking Application are permitted by agreement of the Parties no later than 48 hours before the start of the tour;
- **Accommodation** – these are the options (hotels) presented in the booking system on the website - <http://bunyodtour.tj> by hotel categories, on the basis of which the level of service is determined taking into account: (1) in case of Force Majeure and booking of a Tour Product less than 30 days before the start of the tour, there is a possibility that the hotel may be replaced with a hotel of the same or higher category; (2) depending on territorial availability (local conditions), there is a possibility of changing the names and categories of hotels. For details, including the classification of hotels, see the Accommodation Policy document;
- **Standard meal** – includes salad, 1st and/or 2nd hot dish, bread, tea, however guests can order other dishes for an additional fee;
- **Force majeure** – is an emergency, force majeure, an unpredictable event that is beyond our control (not dependent on our will) and leads to the impossibility of providing tourism services, including natural disasters (hurricanes, floods, earthquakes), epidemics and pandemics, military actions, riots, strikes, decisions of government bodies;
- **Subjective evaluation** – is a form of judgment or perception based on personal experience, opinion, emotional state, hostility, or individual attitudes rather than on objective, measurable data..
- **Privacy Policy** – a document developed in accordance with the requirements of the Law of the Republic of Tajikistan dated August 3, 2018 No. 1537 “On the Protection of Personal Data”, as well as in accordance with other laws and regulations of the Republic of Tajikistan defining the cases and features of the processing of personal data and ensuring security and confidentiality of such information and published on the website: <http://bunyodtour.tj>.

3. DEPOSIT

- 3.1. **A deposit of 25%** is deducted as an advance payment in the following cases:
 - 3.1.1. To book a tour, a tourist pays a portion of the tour cost, but not less than 25%;
 - 3.1.2. To book a tour, a tourist pays the full tour cost, 100%.
- 3.2. **A deposit of 10%** is deducted as an advance payment in the following cases:
 - 3.2.1. A tourist signs up for a group tour and pays 10% of the tour price to book the tour. However, registration must be completed no later than 30 days before the tour start date;
 - 3.2.2. A tourist signs up for a group tour and pays the full tour price (100%).

4. PAYMENT FOR TOUR PRODUCT

Payment for a tour product can be made under the following conditions:

- 4.1. **Full payment-100%** - offline, online on the website - selection of tour product, booking and payment using the presented payment methods;
- 4.2. **Prepayment-10%** - offline, online on the website - selection of tour product, registration for a group tour and payment using the presented payment methods. The balance (90%) must be paid (a) in cash on the first day of the tour or (b) via other accepted payment methods 72 hours prior to the tour

start date;

- 4.3. **Prepayment-25%** - offline, online on the website - selection of tour product, registration for a group tour and payment using the presented payment methods. The balance (75%) must be paid (a) in cash on the first day of the tour or (b) via other accepted payment methods 72 hours prior to the tour start date;
- 4.4. In case of any difficulties with payment methods, we suggest using the following methods: (1) request for a POS link, (2) request for an invoice, (3) independent transfer to the bank account specified in the Offer Agreement.;
- 4.5. Requests (orders) for payment under clause 4.4. must be submitted to the Company's e-mail address - info@bunyodtour.tj;
- 4.6. To pay for our Company's tours and services, you can use bank accounts (TJS, US\$, EUR, and RUB), Visa, Mastercard, Korti Milli, and Mir cards, as well as online wallets and cryptocurrency. For detailed instructions on booking and paying for tours on the website, please see the Website Guide;
- 4.7. Full payment must be made 72 hours before the start of the tour or in cash in national currency on the first day of the tour.

5. RESPONSIBILITY OF THE PARTIES

- 5.1. The Tour operator is responsible for the execution of the order on the terms of the tour, subject to full payment for the tour within the specified time frame by the contract.
- 5.2. The Contractor (Tour Operator) with whom the tour package was booked shall not be liable to the Client, shall not refund the full or partial cost of the tour, and shall not compensate for moral damages:
 - 5.2.1. in case of violation by the Client (Tourist) of the provisions of this Agreement, and in case of failure by the Client to fulfill the obligations set out in clause 5 of this Agreement;
 - 5.2.2. in case of refusal by a foreign state to issue entry (exit) visas to the Client (Tourist) along the Tour route, due to delays in the consideration of documents by the consulate of a foreign state;
 - 5.2.3. when the Client (Tourist) passes through customs, sanitary, border control and other services of airports (as well as checkpoints, railway stations), including if this is due to incorrect execution or invalidity of the Client's (Tourist's) passport, or the absence of an entry about family members in the Client's (Tourist's) passport, or the absence or incorrect execution of powers of attorney for minors;
 - 5.2.4. in case of changes in the pricing policy of airlines, changes in tariffs for booked air tickets, for delays in departures and arrivals, change of aircraft type, cancellation of flights, for delivery and safety of the Client's (Tourist's) baggage;
 - 5.2.5. in the event of problems, difficulties and consequences arising for the Client (Tourist) due to the loss of the Client's (Tourist's) foreign passport;
 - 5.2.6. in the event of independent changes by the Client (Tourist) to individual elements of the program (excursion program, transfer, place and level of accommodation, late arrival at the group meeting point, etc.), which caused additional costs on the part of the Client (tourist);
 - 5.2.7. if the services provided do not correspond to the Client's unreasonable expectations and his subjective evaluation;

- 5.2.8. if problems arise related to the safety of the personal luggage, valuables and documents of the Client (Tourist) during the entire period of the trip;
- 5.2.9. if problems arise related to the authenticity of documents provided by the Client (Tourist) for registration and organization of a tourist trip (passport, certificate, power of attorney, etc.).

6. REFUND

- 6.1. In case of refusal of the tour product at the initiative of the Client, regardless of the reasons, within 30 calendar days before the date (time) of the start of the tour, the Client will be refunded the full amount of the payment (100%).
- 6.2. If the Client cancels the tour product, regardless of the reason, and less than 30 calendar days prior to the tour start date (time), the Client will pay an unconditional penalty of at least 25% (10% under clause 3.2) of the total amount of the Offer Agreement (Tour Product). In this case, a deposit of 25% (10% under clause 3.2) of the tour product cost will be charged upon refund.
- 6.3. If the Client is dissatisfied due to poor service quality (by third parties), and submits a written request to the Tour Operator (with supporting evidence) within 10 days of the tour booking date (or during the tour), the Client will be refunded a certain portion of the tour cost. However, the amount of compensation (reimbursement) is determined by a specially created committee consisting of a representative of the Tour Operator, a tour guide, and a representative of the third party.

7. TERMS AND AMOUNT OF REFUND

- 7.1. A full refund (100%) is made if the Client cancels the tour product 30 days before the start of the tour (under clause 6.1.);
- 7.2. A refund of 75% (90%) of the tour cost is made if the Client cancels the tour product 48 hours before the start of the tour (under clause 6.2.).
- 7.3. If the Client cancels the tour product less than 48 hours before the start of the tour or during the tour, the refund amount is 0%, i.e. it is not refundable (except for the provisions of clause 6.3.);
- 7.4. Refunds are made to the Client's bank account or other acceptable payment methods within 10 banking days;
- 7.5. To request a refund, you must:
 - 1) send a request (letter with supporting evidence) to cancel a tour or service to booking@bunyodtour.tj with the subject line "Order cancellation and refund.";
 - 2) after reviewing the application, the Client will receive a calculation of the amount to be refunded;
 - 3) after agreement, the settlement amount is returned within the specified period.
- 7.6. Refunds of funds paid in cash are made at the cash desk of the company office at the address: Dushanbe, Rudaki Ave. 6A, from 09:00 to 16:00.
- 7.7. Refunds of funds transferred to a bank account are made only by bank transfer and only to a bank account (credit/debit card account or other bank account).

- 7.8. Refunds to legal entities are made only by bank transfer and only to a bank account..
- 7.9. The issuance of funds to the Client's representative is carried out upon presentation of a notarized power of attorney.

8. ТРЕБУЕМЫЕ ДОКУМЕНТЫ

- 8.1. To receive a refund if the booking was not made through the website, you must provide:
- supporting documents (receipts, invoices, etc.) of payment;
 - a copy of your passport;
 - a copy of the contract;
 - копия договора;
 - - an invoice for payment (refund), a standard form including all bank and Client details (for legal entities or non-cash refunds).
- 8.2. Failure to provide the required documents will not result in a refund.

9. REIMBURSEMENT

- 9.1. Reimbursement is contingent upon the submission of a written request by the Client to the Tour Operator's email address, accompanied by substantiating documentation, within 24 hours following the conclusion of the tour (or during its validity period) in the event of the Client's discontent with the substandard quality of services provided by third parties (partners, subcontractors of the Tour Operator, etc.).
- 9.2. The letter of application must be accompanied by photographs, video recordings and other materials that demonstrate the grounds for the claim for compensation (reimbursement).
- 9.3. Reimbursement are not possible unless the Client applies (written request) directly to the Tour Operator.
- 9.4. Insurance premiums are not included in the price of the tourist product, so the Client must be informed about this.
- 9.5. The amount of compensation (reimbursement) is determined by a specially created commission, which includes a representative of the Tour Operator, a tour guide and a representative of a third party in accordance with the legislation of the Republic of Tajikistan and the legal acts of the Tour Operator.

10. FINAL CLAUSES

- 10.1. These Rules have been developed in accordance with the legislation of the Republic of Tajikistan and come into force for the Client from the moment of booking a tour product on the website - <http://bunyodtour.tj> and the Client's consent to the above conditions and legal regulations.
- 10.2. The Client's consent is confirmed by checking the appropriate box in the last section of the tour booking form.

- 10.3.** The rights of Bunyod-Tour LLC are protected by the legislation of the Republic of Tajikistan, and we are not obligated to follow any other rule or regulation that contradicts this Rule or does not comply with the provisions of this Rule.
- 10.4.** The Client is obliged to comply with all conditions and legal norms established by this Rule. For its part, the Tour Operator will provide the Client with all possible support and compensate for any dissatisfaction that has an evidentiary basis and is fairly justified.

